

SENATE No. 1727

The Commonwealth of Massachusetts

PRESENTED BY:

Liz Miranda

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to establish privileged contact with members of the general court.

PETITION OF:

NAME:

Liz Miranda

DISTRICT/ADDRESS:

Second Suffolk

SENATE No. 1727

By Ms. Miranda, a petition (accompanied by bill, Senate, No. 1727) of Liz Miranda for legislation to protect the confidentiality of communications with members of the general court and inmates. Public Safety and Homeland Security.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to establish privileged contact with members of the general court.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 87A of chapter 127 of the General Laws, inserted by chapter 64 of the acts of
2 2023, is hereby amended by adding the following 2 subsections:-

3 (d) The department of correction, sheriff, prison, correctional facility or communication
4 services contractor shall not monitor or record the content of voice, video or electronic
5 communications between a member of the house of representatives or senate and a person
6 committed to a state correctional facility, state prison or county correctional facility, including a
7 jail or house of correction.

8 (e) A person committed to a state correctional facility, state prison or county correctional
9 facility, including a jail or house of correction, shall have the privilege to refuse to disclose and
10 to prevent others from disclosing confidential communications made during in-person, voice,
11 video or electronic communications with a member of the house of representatives or the senate;
12 provided, that a communication shall be considered confidential if it is not intended to be

- 13 disclosed to a third person; and provided further, that this privilege shall not apply to
- 14 communications relevant to the furtherance of a crime or fraud.